

June 10, 2013 18 WHEREAS, the Local Redevelopment and Housing Law, N.J.S.A. 40A:12A-1, et seq. (the "Act"), authorizes municipalities to determine whether certain parcels of land in the municipality constitute areas in need of redevelopment in accordance with the Act, including Section 5 thereof; and WHEREAS, the Town wishes to utilize the Planning Board's knowledge and expertise in exploring whether the following parcels with frontage on either US Route 206 or Adams Street, as depicted on the map attached hereto as Exhibit A and identified on the official tax map of the Town as Block 8.08, Lots 6, 7, 8, 9, 10, 11, 29, 30 and 31 (collectively, the "Study Area") meet the criteria established by the Act; and WHEREAS, the Town therefore seeks to authorize and direct the Planning Board to conduct a preliminary investigation of the Study Area and to make recommendations to the Town, all in accordance with the Act; NOW, THEREFORE, BE IT RESOLVED by the Mayor and Town Council of the Town of Newton as follows: I. GENERAL The aforementioned recitals are incorporated herein as though fully set forth at length. II. INVESTIGATION OF STUDY AREA AUTHORIZED The Planning Board is hereby authorized and directed to conduct an investigation pursuant to N.J.S.A.40A:12A-6 to determine whether all or a portion of the Study Area satisfies the criteria set forth in the Act, including N.J.S.A.40A:12A-5, to be designated as an area in need of redevelopment. III. MAP TO BE PREPARED As part of its investigation, the Planning Board shall prepare a map showing the boundaries of the proposed redevelopment areas and the location of the various parcels contained therein. IV. PUBLIC HEARING REQUIRED The Planning Board shall conduct a public hearing, after giving due notice of the proposed boundaries of the Study Area and the date of the hearing to any persons who are interested in or would be affected by a determination that all or a portion of the Study Area is a redevelopment area. At the hearing, the Planning Board shall hear from all persons who are interested in or would be affected by a determination that all or a portion of the Study Area is a redevelopment area. All objections to a determination that all or a portion of the Study Area is an area in need of redevelopment and evidence in support of those objections shall be received and considered by the Planning Board and made part of the public record. V. PLANNING BOARD TO MAKE RECOMMENDATIONS After conducting its investigation, preparing a map of the proposed redevelopment area, and conducting a public hearing at which all objections to the designation are received and considered, the Planning Board shall make a recommendation to the Town as to whether the Town should designate all or part of the Study Area as an area in need of redevelopment. VI. SEVERABILITY If any part of this Resolution shall be deemed invalid, such parts shall be severed and the invalidity thereby shall not affect the remaining parts of this Resolution. VII. AVAILABILITY OF THE RESOLUTION